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Security and Privacy Legal Framework

Spyware (Pegasus, Predator) and legal issues

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Abstract

This master's thesis examines, in the light of digital constitutionalism, the legal and technological challenges posed by the use of intrusive spyware, with emphasis on Pegasus and Predator. After clarifying the technical mechanisms of contamination and their operation, and in particular zero-click attacks, the institutional and legal framework for lifting secrecy at national and European level is analyzed, as well as the role of Independent Authorities. Through the case studies of the international Pegasus scandal and the Greek "Predatorgate", it emerges that the invocation of national security often functions as a legal screen for the circumvention of the principle of proportionality, effective judicial review and the right of the affected person to information. The paper concludes with proposals *de lege ferenda*, proposing the transfer of the risk-based approach of the EU Artificial Intelligence Regulation (AI Act) to the regulation of spyware.

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1. Introduction

1.1 "Digital constitutionalism" and the limits of digital power

This research focuses on the critical legal and technological analysis of the use of intrusive spyware, such as Pegasus and Predator. The purpose of the study is not to simply present positive law, but to highlight the institutional rifts caused by uncontrolled digital surveillance in the modern Rule of Law, at national and European level.

To understand these challenges, the analysis is based on the theoretical prism of "Digital Constitutionalism". Digital Constitutionalism emerges as the necessary legal response to the asymmetric concentration of power in the digital space, seeking to adapt traditional constitutional guarantees to modern technological threats [1]. As analyzed in modern theory, the digital space is not a legal vacuum (vacuum), but a new field of power, where fundamental rights must be protected both against state arbitrariness and against the uncontrolled action of private technological giants [2].

Especially in the case of spyware, the concept of digital constitutionalism sets the absolutely necessary limits to the so-called "digital power". The invocation of national security by states cannot function as a "blank cheque" for the total and retroactive lifting of secrecy, violating the principle of proportionality and offending the narrow core of privacy [3]. In this light, the paper examines how the cooperation of state structures and private software production companies creates a new, opaque model of surveillance, which requires immediate and strict constitutional demarcation.

2. Technological background and conceptual definitions

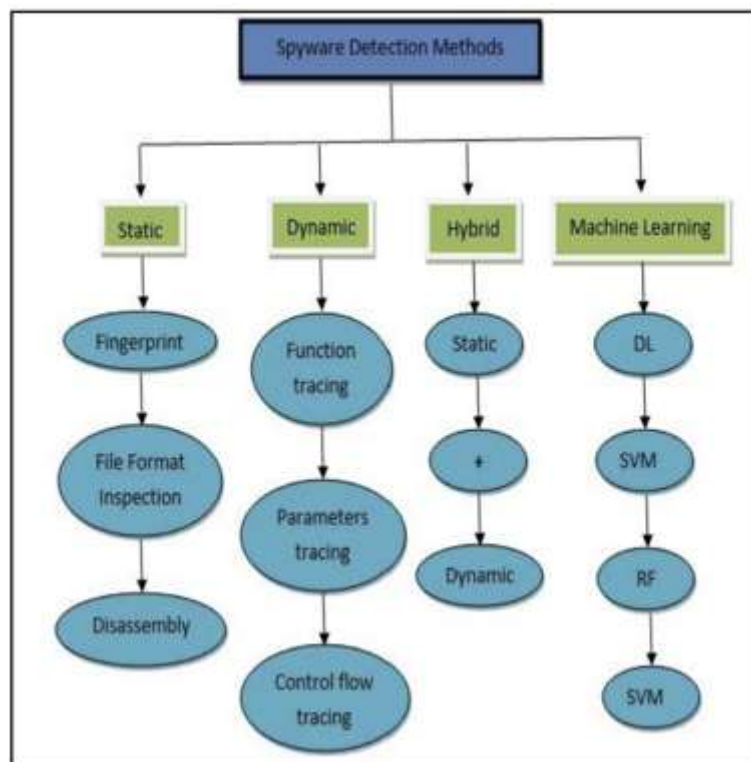
Before the legal analysis of the breach of secrecy, it is necessary to clarify the basic technical concepts. This chapter defines the concept of spyware and its distinction from broader malware, and describes its infection and operation mechanisms, with an emphasis on modern zero-click attacks that leverage software such as Pegasus and Predator.

2.1 Definition and categorization of spyware (Spyware vs. Malware)

Spyware or spyware is defined as a software product that aims to monitor and collect sensitive data from a malicious third party. This data can be passwords, authentication data, and more. The minimal interaction of these software with the victim's system resources makes them particularly difficult to detect, allowing them to operate uninterrupted and undetected for long periods of time [4].

In the literature, two characteristic types of spyware can be distinguished [5]. The first is Adware, which involves tracking the victim's search history online, aiming to display targeted advertisements and personalize search results. The second type is Keyloggers. Software of this kind records the user's keyboard, providing the possibility of revealing the texts he has written, which can contain sensitive information [5]. In addition, techniques such as browser plugins, fake applications (e.g. antivirus) and tracking software are used [6].

Four basic methods are mentioned to detect these software [7]: the Static Method (which analyzes the software for malicious code fragments), the Dynamic



Method (which monitors the behavior of the software during its operation), the Hybrid Method (which combines the previous two) and, finally, the Machine Learning Method (which uses models such as Naive Bayes and Deep Learning to determine whether a software is spyware) [7].

Detection Methods

2.2 Mechanisms for the infection and operation of digital eavesdropping (Zero-Click Exploits)

In terms of attack mechanisms, installation can be achieved through the exploitation of unknown software vulnerabilities (Zero-day exploits), the use of Trojans or the embedding of malicious code into seemingly legitimate applications [8]. A particularly dangerous category is that of automatic installation [6]. Unlike traditional methods, no action on the part of the user is required here (Zero-click).

The most typical examples of modern and highly sophisticated spyware are Pegasus and Predator. Pegasus is designed to infiltrate iOS and Android devices, extracting messages, photos, codes, and activating the microphone and camera without the user's knowledge [9]. Their main similarity lies in their ultimate purpose, that is, the total and covert monitoring of the goal. However, a key difference between them in terms of infection mechanisms is that Predator in the past often required the user to click on a malicious link, the so-called 1-click exploit, in order to install, while Pegasus became notorious for its "Zero-click" attacks, where the device is infected simply upon receipt of a message, with absolutely no user interaction [9].

Despite the technological complexity, the human factor remains the weakest link. The successful installation of software often relies on social engineering techniques, where users fall victim to misleading messages (phishing or smishing) [6]. At the same time, the lack of digital hygiene, such as the delay in installing critical updates, leaves devices exposed [4].

3. Institutional and legal framework for the lifting of secrecy

3.1 The constitutional consolidation, the pre-existing regime (Law 2225/1994) and the need for reform

In the Greek legal system, the foundation for the protection of private communications is laid by the Constitution itself. In particular, Article 19 enshrines the absolutely inviolable nature of the confidentiality of letters and of any form of free correspondence or communication [10]. This constitutional provision leaves no room for arbitrary state interventions, providing for strict and restrictive exceptions. The lifting of secrecy is allowed only for reasons of national security or for the detection of particularly serious crimes. However, as the Constitution stipulates, this can only happen on the basis of a law that sets specific guarantees and exclusively through the judicial authority, which is the only one that can not be bound by secrecy [11].

At the same time, the Constitution creates a wider network of privacy protection, inextricably linking the confidentiality of communications to Article 9, which protects the asylum of residence and private and family life [12], but also to Article 9A, which enshrines the right of the individual to the protection of his or her personal data from electronic processing [13]. In the context of modern spyware, the hacking of a device constitutes a simultaneous infringement of all three of these articles. Finally, it is worth noting that the constitutional legislator, in order to prevent illegal

surveillance, expressly prohibits the use of any means of evidence obtained in violation of Articles 19, 9 and 9A [14]. At the same time, based on article 19 par. 2 and Article 9A, requires the establishment of Independent Authorities (the current ADAE and HDPa respectively) for the institutional safeguarding of these rights [15].

Prior to the radical reform of the legal framework by Law 5002/2022, the procedure for lifting confidentiality was regulated by Law 2225/1994 [16]. The previous regime was characterised by significant deficits in transparency, as the signature of a single prosecutor was sufficient to authorise surveillance for reasons of "national security", without the obligation to provide a specific justification [17]. The inadequacy of this regime was strongly highlighted during the revelation of the Predator surveillance cases, which led to the repeal of the controversial provisions and the adoption of the new Law 5002/2022 [18].

3.2 The new law 5002/2022: Privacy lifting procedure and innovations

This new law was enacted with the stated purpose of modernizing the process of lifting the secrecy of communications and protecting against surveillance software [19]. The new legal framework establishes stricter conditions, especially with regard to the lifting of secrecy for reasons of national security. Now, the National Intelligence Service (E.Y.P.) and the Directorate for Combating Special Violent Crimes (D.A.E.E.V.) are entitled to submit a relevant request [20]. The request is initially examined and approved by the competent prosecutor, and then the consent of a second prosecutor (Deputy Prosecutor of the Supreme Court or Prosecutor of the Court of Appeal) is required within twenty-four (24) hours [21]. An important innovation of the law is the special provision for political figures. In these cases, the request is submitted exclusively by the National Intelligence Service and requires the granting of relevant permission by the President of the Parliament [22]. At the same time, in cases of lifting of secrecy for the purpose of establishing crimes, the procedure remains under strict judicial control, is allowed for specific crimes and is carried out following a specially reasoned decree of the competent judicial council [23].

The most crucial point of the law, however, in relation to the subject of this study, is its approach to spyware. On the one hand, the legislator strictly criminalizes the trafficking, production, sale and possession of such software or devices (by adding Article 370F to the Criminal Code) with a prison sentence of at least two years [24].

On the other hand, however, it legitimizes their supply and use by state structures. In particular, Article 13 stipulates that it is permissible for state structures to conclude contracts for the supply of surveillance software for the fulfillment of their purposes, referring the determination of the exact conditions and conditions for their use to the issuance of a Presidential Decree [25]. Finally, it is provided that the specific software must be recorded in an indicative list, which is issued and updated every six months by the Plenary Session of the Authority for Communication Security and Privacy (ADAE) [17].

3.3 The institutional role of the Independent Authorities

3.3.1 Hellenic Authority for Communication Security and Privacy (ADAE)

The Hellenic Authority for Communication Security and Privacy (ADAE) is a constitutionally guaranteed Independent Authority, which was established (by Law 3115/2003) in direct application of the constitutional provision of Article 19 par. 2 of the Constitution [26], [27]. The central core of its mission is to ensure and protect the confidentiality of letters, the free correspondence and all forms of communication of citizens, constituting the main control arm of the state in the field of telecommunications [28]. Its administrative autonomy and the exercise of its responsibilities are further shielded by the new Agency of the Authority, which was adopted in 2022 [29].

In order to fulfill its purpose, the ADAE has extensive audit powers. In particular, it carries out regular and extraordinary (ex officio or following a complaint) inspections both at the premises of telecommunications service providers and at public bodies involved in the lifting of secrecy, such as the National Intelligence Service (NIS) and the Hellenic Police [26], [29]. Through these checks, the Authority examines the legality of the connections, compliance with the conditions set by the judicial authority and the security of the networks [26], [27].

In the face of modern technological challenges and the emergence of cases of the use of spyware, the institutional role of the ADAE proves to be crucial. The Authority is often called upon to investigate complaints from citizens and public figures about the jamming of their communication devices [27]. In this context, despite the

institutional and legislative difficulties that may arise – especially with regard to its competence to inform those monitored after the end of the connection – the ADAE acts as the main institutional counterweight, ensuring transparency and compliance with legality [28].

3.3.2 Hellenic Data Protection Authority (A.P.D.P.C.)

The Personal Data Protection Authority (A.P.D.P.X.) is a constitutionally guaranteed Independent Authority, which is expressly provided for by Article 9A of the Constitution [30], [31]. Its operation and responsibilities are mainly specified through Law 4624/2019, which incorporated the General Data Protection Regulation (GDPR) and Directive (EU) 2016/680 [32] into the Greek legal order. At the same time, the Authority is in charge of supervising the implementation of Law 3471/2006, which concerns in particular the protection of data and privacy in the field of electronic communications [33]. Its main mission is to protect the rights of natural persons against the unfair and unlawful processing of their personal data, having strong control, advisory and sanctioning powers [34].

In cases of the use of spyware, the A.P.D.P.C. assumes a distinct but equally crucial role in relation to the A.D.A.E. While the latter focuses on the confidentiality of communications and state connections, the A.P.D.P.C. intervenes by controlling the aspect of the illegal collection and processing of data by private entities [30]. In this context, the Authority has the power to carry out on-site inspections of companies involved in the production and marketing of such software. In addition, by making use of the strict sanctioning tools provided by the GDPR and Law 4624/2019, the Authority may impose significant administrative fines on corporate entities, in particular in cases of non-cooperation during audits or refusal to provide data [34], [31]. With this intervention, the A.P.D.P.C. highlights the responsibility of individuals in the ecosystem of digital surveillance.

4. Legal Issues and Challenges

The use of spyware by state agencies highlights a series of fundamental legal challenges, which test the endurance of the Rule of Law. This chapter examines four key aspects: the balancing of national security and individual rights in the light of the principle of proportionality (4.1), the shortcomings of judicial review and transparency (4.2), the liability of private production companies (4.3) and, finally, the right to information of the affected person as a guarantee of effective judicial protection (4.4).

4.1 National Security vs. Individual Rights

The use of spyware creates a fundamental tension in the modern Rule of Law. At the center of this tension is the confrontation of two legal goods: on the one hand, National Security, which is a basic obligation of the state, and on the other hand, the right to privacy and confidentiality of communications.

In the Greek Constitution, article 19 par. 1 stipulates that the confidentiality of letters and of free correspondence or communication is "absolutely inviolable" [10]. At the same time, Article 8 of the European Convention on Human Rights (ECHR) enshrines the right to respect for private and family life [35]. However, these rights are not entirely unlimited. They may be restricted for reasons of national security, provided that the principle of proportionality is respected (Article 25(1) of the Constitution) [36].

According to settled case law and constitutional theory, in order for a restriction to be compatible with the Constitution, it must cumulatively meet three criteria [37], [38], [39]:

- **Appropriateness:** the instrument chosen must be objectively appropriate for achieving the objective pursued (e.g. the prevention of a terrorist threat).
- **Necessity:** the 'mildest possible means' must be chosen. If the national security objective can be achieved by less onerous means (e.g. targeted legal interception), the use of highly intrusive software becomes unnecessary.
- **Proportionality:** there must be a reasonable balance between the seriousness of the infringement of the right and the gravity of the public interest at stake.

In the case of software such as Pegasus or Predator, the observance of proportionality is strongly questioned. While traditional "legitimate logging" is typically limited to recording future communications, spyware offers full and retrospective access to every aspect of a person's digital life: messages, files, photos, passwords, location, and even remote microphone and camera activation. This "holistic" penetration renders the medium inherently disproportionate, because it transforms the subject's apparatus into a tool of constant and total surveillance [9]. It is no coincidence that the Venice Commission, in its report on a regulation of spyware compatible with the rule of law, stresses that, due to its unprecedented penetration, the domestic use of such technology must be subject to strict licensing conditions and have a limited scope [40].

4.2 Lack of judicial control and transparency

The protection of individual rights against state arbitrariness depends directly on the existence of a truly independent and functional control system. In the case of intrusive software, opacity and limited judicial review pose serious challenges, as they strip constitutional guarantees of their essential content.

4.2.1 The formal and substantive judicial judgment

A basic institutional safeguard is the participation of a judicial or prosecutorial officer, who approves the lifting of secrecy. In practice, however, the procedure often degenerates into a standardised and bureaucratic approval: public prosecutor's orders for reasons of national security are generally concise, reproducing stereotyped formulations without specifying the facts constituting the imminent danger. Given the total penetration of modern spyware, the control by a single prosecutor is considered insufficient. The theory supports the necessity of an evaluation by a collegiate body (e.g. judicial council) that will carry out a substantive and not just a formal audit [41], [42]. Moreover, the ECtHR itself has pointed out that 'the possibility of unlawful action by a dishonest, negligent or overzealous official can never be completely ruled out, regardless of the system'. *Klass and Others v. Germany*, §59) [41].

4.2.2 State secrecy as a barrier to Independent Authorities

A particularly complex issue arises when the executive invokes "state secrecy" in order to limit the operation of constitutionally guaranteed Independent Authorities, such as the ADAE (Article 19 par. 2 of the Constitution) [15]. When the secret services refuse access to the surveillance files on security grounds, a vicious circle of opacity is created: the invocation of secrecy against the very body appointed by the Constitution to control it upsets the balance of powers and renders the control mechanisms useless [43]. The Venice Commission describes the use of "blanket secrecy" as one of the basic pathologies of supervision [40], [44].

4.2.3 Shrinking ex-post control and accountability

Transparency requires that the monitored person should, after the completion of the measure (ex post), be able to be informed in order to exercise his or her right to redress (Article 20s of the Constitution) [45]. The legislative deprivation of this possibility deprives the citizen of the only tool of defense against a potentially illegal state intervention. Similarly, the ECtHR case-law on mass surveillance (*Big Brother Watch and Others v. UK*, 2021) requires the existence of 'end-to-end safeguards' at all stages of monitoring to prevent arbitrariness [46]. Without the possibility of accountability and judicial redress, the monitoring mechanisms become uncontrollable.

4.3 The responsibility of software companies

The global surveillance software market is primarily controlled by private companies. Two iconic examples are NSO Group (Pegasus) and Intellexa/Cytrox (Predator). Their action highlights an important gap in the international and national context: the issue of the legal and civil liability of individuals when their products are used for abusive human rights violations.

4.3.1 The regime of dual-use goods

From a legal point of view, sophisticated surveillance software is classified as dual-use goods, as it can be used for both legitimate purposes (fighting serious crime and terrorism) and illegal abuses (targeting journalists and political opponents). Their export is governed by international regulations, such as the Wassenaar Arrangement [47], and, at European level, by Regulation (EU) 2021/821 on the control of exports of dual-use items [48]. Production companies often invoke that the responsibility lies solely with the client states. Legal science, however, counters that companies have "corporate due diligence" and must check whether buyers guarantee respect for human rights [49].

4.3.2 Corporate responsibility and international human rights law

The UN Guiding Principles on Business and Human Rights stipulate that private companies have an autonomous obligation not to cause or contribute to rights violations [49]. In the case of NSO Group and Intellexa, the liability becomes more direct, as the software requires ongoing technical support, maintenance and updates from the manufacturer itself to remain functional. Therefore, the provision of technical support to a state that has been proven to misuse the software may establish complicity or civil tort. Already in 2019, the UN Special Rapporteur D. Kaye had called for a temporary suspension of the sale and use of such technologies, precisely because of the inability to ensure their legal use [50].

4.3.3 International sanctions and strategic litigation

The absence of a single global judicial body to prosecute these companies has led to the mobilization of alternative legal avenues. In terms of sanctions, the US Department of Commerce included NSO Group (and later Intellexa) in the "Entity List", prohibiting transactions with US companies [51]. At the level of private lawsuits, companies such as Apple and WhatsApp/Meta have filed lawsuits against NSO Group

in US courts for violating the terms of use and illegal access (hacking) to their users' devices [52]. These developments, together with the academic documentation of the "rise of digital repression", demonstrate the gradual shift towards a regime of accountability of private providers [53], [54].

4.4 Right of the affected person to information (The decision of the Council of State Plenary 465/2024)

The right of the subject to be informed after the end of the surveillance measure is a cornerstone of the effectiveness of the Rule of Law. Without ex post knowledge of the insult, constitutional protection becomes theoretical and false, as the citizen is deprived of the opportunity to defend himself in court.

The organic connection with the right to judicial protection.

In Greek constitutional law, the right to information is inextricably linked to Article 20 par. 1 of the Constitution (provision of legal protection) [45] and Article 13 of the ECHR (right to an effective remedy) [35]. In order to be able to go to court, claim compensation or check the legality of the measure, one must first know that it has taken place.

The intersection of the case law of the Council of State (Plenary 465/2024).

The issue came to the fore after the 2021 legislation, which universally prohibited the ADAE from informing citizens that they had been placed under surveillance for reasons of national security (Article 87 of Law 4790/2021) [55]. With the unanimous decision of the Plenary Session 465/2024 (N. Androulakis case), the Council of State ruled that "the regulation of Article 87 of Law 4790/2021 [...], which established [...] The total prohibition of the possibility of informing the person concerned, after the end of the measure, even when there is no risk to the objectives of

national security ..., constitutes an excessive restriction on the inviolability of communication, which is not justified in the context of the functioning of the rule of law' [56]. The Court emphasised that a restriction on the right to information is permissible only to the extent strictly necessary. When the purpose of national security has been achieved, the total refusal to provide information violates the principle of proportionality.

International standards.

The case law of the ECtHR has consistently stipulated that States must inform the affected person as soon as possible, without jeopardizing the purpose of the investigation (*Weber and Saravia v. Germany*, 2006) [57]. Similarly, the Parliamentary Assembly of the Council of Europe, with Resolution 2513 (2023), calls on states "to refrain from using universal secrecy rules to deny surveillance mechanisms and targeted persons access to information on the use of spyware" [44]. Comparative data on how citizens are informed in European countries are also provided by the report of the EU Agency for Fundamental Rights (FRA) [58].

5. Case Studies

This chapter analyses two emblematic cases that illustrate the legal challenges of Chapter 4: the international Pegasus scandal, as an example of cross-border espionage and institutional response (5.1), and the Greek Predatorgate case, as a study of a "hybrid" surveillance model with deep institutional implications (5.2).

5.1 Pegasus Case: International Reactions and Sanctions

The revelation of the massive use of Pegasus software, developed by Israel's NSO Group, has sparked a global debate on the limits of digital surveillance, demonstrating how private, military-style tools can undermine democratic institutions internationally.

The scandal and cross-border targeting.

The peculiarity of the scandal lies in the fact that the targeting was not limited to persons linked to the common crime, but extended to journalists, activists, opposition politicians and acting heads of state. Through the revelations of the journalistic consortium *Forbidden Stories* (Pegasus Project) documented the contamination of the devices of hundreds of persons [59], [60]. From a legal point of view, this cross-border action – where a State uses software from another State's company to track citizens in

a third country – raises serious issues of State sovereignty and jurisdiction in international law [54].

The institutional reaction of the European Union.

Finding that European territories and citizens had been targeted, the European Parliament set up a special committee of inquiry (PEGA). The findings showed that the lack of a single European control allowed such software to operate unchecked [61]. In its Recommendation of 15 June 2023, Parliament called for strict conditions for the use and export of spyware, as well as prior judicial authorisation limited to clearly defined serious crimes [62]. At the same time, the Venice Commission has issued a guide report on a rule of law regulation of spyware [40].

The imposition of international sanctions.

The most tangible sanction at the corporate level came from the US: the Department of Commerce included NSO Group in the Entity List, judging that its activity was directed against US national security and foreign policy interests [51]. The decision had serious financial and legal consequences, as it excluded the company from accessing American technology, acting as an international precedent for restricting the trade in "digital weapons." The technical documentation of the infections (especially through zero-click exploits) has been detailed in the reports of the Citizen Lab [9], while the overall narrative of the scandal has also been recorded in an independent literature [60].

5.2 Greek case: Predatorgate - Legal and Political Implications

The Greek case, internationally known as Predatorgate, is one of the most complex European examples, as it highlighted how institutional weaknesses and legislative interventions can facilitate the uncontrolled exploitation of surveillance

technologies. A key aspect is the connection of state security services with the action of private software trading companies [63], [64].

5.2.1 The 'hybrid' monitoring model

The legal peculiarity of the Greek scandal lies in the simultaneous or successive targeting of the same persons (politicians, journalists, institutional actors) through two different channels: the "legal connection" by the National Intelligence Service (NIS) for reasons of national security and the contamination of devices with Intellexa's illegal Predator software [65], [66]. According to the Data Protection Authority and the ADAE, the confirmed targets initially amounted to dozens of persons, while in March 2026 the publication of the full list of the Data Protection Authority raised the number to 115 persons, including ministers, journalists, judges and senior members of the armed forces [43], [66], [67]. From a dogmatic point of view, this model demonstrates a circumvention of the spirit of Article 19 of the Constitution: the invocation of national security functioned as a legal façade for the issuance of prosecutorial orders, while at the same time a means (spyware) was used without a legal basis in the Greek legal order [10].

5.2.2 Legislative interventions and institutional response

The development of the case was marked by legislative initiatives that limited transparency. The 2021 amendment (Article 87 of Law 4790/2021) established the prohibition of informing the affected person by the ADAE after the end of the surveillance for reasons of national security, acting as a barrier to ex post control, until its overturning by the Council of State in 2024 [55], [56]. The new Law 5002/2022 was passed as a response to the crisis, but introduced a cumbersome information process (three-member body, lapse of years), which was criticized for its inadequacy, while at the same time legalizing the procurement of surveillance software by state structures [25]. At the same time, the institutional conflict between the ADAE (under Chr. Rammos) and the judiciary, regarding the right of the Authority to control the EYP, highlighted the limits of the independence of the constitutionally guaranteed authorities

[43]. The trend towards strengthening judicial control was reaffirmed in March 2026, when the Council of State ordered the EYP to forward the surveillance file of journalist Th. Koukakis or, in the event of its destruction, to legally justify its act and proceed with its reconstitution [68].

5.2.3 Political and international implications

At the political level, the case caused tremors in government stability, leading in the summer of 2022 to the resignations of the Prime Minister's Secretary General, Gr. Dimitriadis, and the Director of the National Intelligence Service, P. Kontoleon [69]. At the international level, the PEGA Committee visited Athens and made strong findings. Characteristically, it considered that in Greece the use of spyware "does not seem to be part of an integrated authoritarian strategy, but rather a tool used ad hoc for political and economic gains" [61], [62], while the Venice Commission underlined that only in Greece was specific legislation enacted after the revelations of spyware abuse [40].

5.2.4 The Criminal Ending and the Conflict of Narratives (2024-2026)

At the judicial level, the case followed two distinct paths that fueled opposing narratives. On the one hand, in July 2024, the Supreme Court, with the conclusion of the criminal investigation, exonerated the state services (NIS, EL.AS.) from involvement in the illegal use of Predator, referring only individuals to trial [70], [66]. On the other hand, on 26 February 2026, the Single-Member Misdemeanor Court of Athens sentenced at first instance four individuals associated with Intellexa and the supplier company Krikel - the founder Tal Dilian, Sara Hamou, Felix Bitzios and Yiannis Lavranos - to a total sentence of 126 years and 8 months (with 8 years to be served, suspended pending appeal) for breach of confidentiality of communications and illegal access to information systems [69], [65], [71], [66], [72]. The court ordered further investigation, including into the felony of espionage [65].

The contradiction of these two crises sharpened the public confrontation. The government maintained unchanged the position that no state agency is linked to the action of Intellexa, explicitly citing the acquittal judgment of the Supreme Court, while the opposition argued that the conviction of the "natural perpetrators" confirms the existence of a principal [73], [74]. The debate flared up in March 2026, when the convicted Intellexa founder publicly stated that the company provides its technology "exclusively to governments and law enforcement," attributing responsibility for the use to the "sovereign authorities" who acquire it [75], [76]. Nevertheless, the Supreme Court prosecutor's office refused to reopen the case against the state services, a fact that was criticized by part of the legal community as a lack of substantive accountability [77]. The case returned to the European spotlight, with a special debate in the Plenary Session of the European Parliament in March 2026 on the impact of convictions on the Rule of Law [78].

Overall, Predatorgate serves as a "laboratory" for all the challenges of chapter 4: the disproportion of the medium (4.1), the lack of substantive judicial review and the invocation of state secrecy (4.2), the difficult attribution of responsibilities to private providers (4.3) and the criticality of the right to information, as enshrined in the judgment of the Council of State. 465/2024 (4.4). However, the most critical question of the Rule of Law remains open: who gave the order.

6. Conclusions and policy proposals

6.1 Summary and evaluation of research findings

This research has shown that the rapid evolution and use of spyware, such as Pegasus and Predator, puts the foundations of the Rule of Law and digital constitutionalism to a serious test. The analysis of the European and Greek contexts has shown that the invocation of national security often functions as a legal façade for the circumvention of institutional guarantees and the universal, non-transparent surveillance of citizens.

As reflected in the case studies, and in particular in the Greek "Predatorgate", the operation of hybrid surveillance models (simultaneous use of legal connections by the EYP and illegal spyware) undermines the principle of proportionality. The main pathologies identified concern the inadequate (often formal) judicial control during the lifting of secrecy, the attempt to shrink the audit powers of the Independent Authorities (ADAE, HDPA) through the invocation of state secrecy, as well as the serious accountability deficit of private companies that develop these "digital weapons". At the same time, the criticality of the ex post audit was highlighted, with the historic decision of the Council of State. 465/2024 to restore the right to information of the affected person as the necessary core of judicial protection.

In conclusion, the existing regulatory framework, including the dual-use goods regime, proves insufficient to prevent arbitrariness by state and private actors.

6.2 De Lege Ferenda proposals: The transposition of the AI Act model in the regulation of spyware in the EU

De lege ferenda (for the law to be enacted), tackling the phenomenon requires a radical regulatory breakthrough at European level. It is proposed to adopt a binding regulatory framework based on the "risk-based approach" model, which was recently introduced by the new EU Regulation on Artificial Intelligence (AI Act - Regulation 2024/1689) [79].

It should be clarified from the outset that spyware does not in itself constitute an "AI system" within the definition of Article 3 par. 1 of the Regulation, as they are not

necessarily based on the ability to draw conclusions (inference) through machine learning or logic techniques, as clarified by the relevant Guidelines of the European Commission [80]. This proposal, therefore, does not concern the direct inclusion of spyware in the AI Act, but the transfer, by analogy, of its regulatory architecture to a new and autonomous framework. This need becomes all the more urgent if we take into account that the Regulation itself explicitly excludes from its scope the field of national security and national defence (Article 2 par. 3) [79], [3]. Thus, even if spyware were classified as AI systems, its predominantly invoked basis of use would leave them out of EU regulation, precisely reproducing the institutional vacuum that this paper attempts to highlight.

The architecture of AI Act can be adapted to spyware as follows:

- **Unacceptable risk (prohibited practices):** Just as the AI Act prohibits systems that manipulate human behaviour or carry out social scoring [79], the new spyware framework should universally prohibit the use of massive/non-targeted surveillance software. Practices that violate the narrow core of privacy without leaving digital traces for forensic investigation (such as specific practices should also be absolutely prohibited) forms of zero-click exploits).
- **High risk (highly regulated use):** Sophisticated targeted spyware, when intended exclusively for the purpose of combating terrorism and particularly serious crime, must be classified as "high-risk" systems [79]. This entails strict obligations:
- **Impact Assessment (FRIA):** Mandatory impact assessment on fundamental rights before any government procurement or use.
- **Logging:** The software must incorporate mechanisms for the impartial recording (logs) of all actions performed on the target's device, in order to enable technical and legal ex post control by the Independent Authorities.
- **CE certification:** Manufacturers will have to go through conformity assessments that will guarantee that the software does not have the ability to "plant" or modify evidence on the victim's device.
- **Corporate accountability and transparency:** In the standards of the AI Act [79], manufacturing and marketing companies (such as Intellexa or NSO Group) should register in a public EU database, strictly adhere to corporate due diligence and bear civil/criminal liability if they are proven to sell products to regimes that violate human rights.

Translating the AI Act's regulatory architecture into the spyware space can provide a pragmatic bridge between technological evolution and constitutional legitimacy, ensuring that digital power never again remains unchecked.

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